

Zafar Ali @ Guddu v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 31 May 2023 · 2023:AHC:122776-DB · Writ - C No. 19590 of 2023 · **Writ disposed; Executive Engineer to decide the connection claim within two months.**

HEADNOTE

A domestic connection sought on asserted physical occupation under clause 4.4(a)(i) of the Electricity Supply Code, 2005, while a suit to cancel a sale deed of the same house is pending, is not granted by mandamus. The Executive Engineer must decide the claim by a reasoned order after verifying the facts and in accordance with law.

FACTUAL SUMMARY

Zafar Ali @ Guddu sought a mandamus directing the Executive Engineer, Electricity Distribution Division-III, Jaunpur, to grant a domestic connection at house No. 298 (old No. 161A), Mohalla Jamin Sipah. He claimed occupation of part of the house. His father, the original owner, had executed a sale deed in favour of the petitioner's elder sister, which the petitioner challenges in Original Suit No. 923 of 2009. He relied on clause 4.4(a)(i) of the Electricity Supply Code, 2005, as a person in physical occupation.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4(a)(i)

occupier's domestic connection while a title suit is pending

HOLDING

Where a person asserting physical occupation of part of a house seeks a domestic connection under clause 4.4(a)(i) and a suit to cancel a sale deed of that house is pending, the writ court does not itself direct the connection. The Executive Engineer must decide the claim by a reasoned order after verifying the necessary facts and in accordance with law, within two months of production of a certified copy of the order. ¶ 6-7

PRINCIPLE TAGS

occupier-connection-claim-left-to-licensee

The petitioner invoked clause 4.4(a)(i) as a person in physical occupation. The Court did not grant the connection and directed the Executive Engineer to verify the facts and decide the claim by a reasoned order in accordance with law. ¶ 6-7

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IS IN PHYSICAL OCCUPATION SO AS TO BE ENTITLED TO A DOMESTIC CONNECTION UNDER CLAUSE 4.4(A)(I), AND WHAT EFFECT THE PENDING SUIT FOR CANCELLATION OF THE SISTER'S SALE DEED HAS ON THAT CLAIM.

Left to the Executive Engineer to verify and decide in accordance with law. ¶ 3-7